

Whangarei District Council Meeting

Supplementary Agenda

Date: Thursday, 27 February, 2025

Time: 9:00 am

Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

Elected Members: His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

For any queries regarding this meeting please contact the Whangarei District Council on (09) 430-4200.

6. Decision Reports / Whakatau Rīpoata

6.6	<i>Te Karearea Strategic Partnership Standing Committee - Review of Terms of Reference 2023-2025</i>	3
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6.6 Te Kārearea Strategic Partnership Standing Committee - Review of Terms of Reference 2023-2025

Meeting: Whangarei District Council
Date of meeting: 27 February 2025
Reporting officer: Mark Scott, Manager - Māori Outcomes

1 Purpose / Te Kaupapa

To seek endorsement for Te Kārearea Strategic Partnership Standing Committee to establish a working group to review its committee terms of reference.

2 Recommendations / Whakataunga

That the Council:

1. Notes this report;
2. Endorse Te Kārearea Strategic Partnership Standing Committee to establish a working group to review its committee terms of reference;
3. Approve the appointment of the following members to the Working Group:
 - Vince Cocurullo, Mayor
 - Phil Halse, Deputy Mayor & Deputy Chair of Te Kārearea Committee
 - Deb Harding, Councillor & Chair of Te Kārearea Committee
 - Delaraine Armstrong, Hapū Appointed Member to Te Kārearea Committee
 - Tame Te Rangi, Hapū Appointed Member to Te Kārearea Committee
4. Approve the appointment of Hohipere Williams as an alternate Hapū Appointed Member to Te Kārearea Committee.

3 Background / Horopaki

The involvement of tangata whenua in local government decision-making has evolved significantly over recent decades. Prior to the legislative reforms for local government in 1991 (RMA) then 2002 (LGA), local government had no legislative obligation, nor did it exercise the governance nor operational will, to include tangata whenua in decision-making processes.

Since 2003 the Whangarei District Council (WDC) has progressively developed a relational approach with tangata whenua by working with Whangārei hapū to seek advice on matters of mutual interest, including how to integrate tikanga into district activities, projects and events.

By 2007 hapū membership increased into a more formal group, Te Huinga, who were able to meet with WDC Councillors to debate issues and to define outcomes and recommendations.

In 2012, the strategic partnership forum, Te Kārearea was established to facilitate meeting with Council. In 2020, Te Kārearea was included as a Standing Committee in the governance structure for Whangarei District Council.

Despite these advancements, hapū members have consistently advocated for greater equity in representation and decision-making powers within the Council's governance structures. These calls have included requests for hapū appointments across all standing committees, specific pathways for hapū participation in policy and planning, and delegated decision-making powers to the Te Kārearea Strategic Partnership Standing Committee.

At the April 2024 meeting proposals were discussed to strengthen the decision-making powers of the Committee.

4 Discussion / Whakawhiti kōrero

The establishment of a Working Group to review the Terms of Reference for the Te Kārearea Strategic Partnership Standing Committee is a critical step towards addressing the longstanding concerns of hapū regarding equitable representation and effective participation in the Council's decision-making processes.

The Committee, for a second term running, operates with advisory powers only, and there is a strong desire from its hapū members for these powers to be expanded to include decision-making authority in areas significant to tangata whenua. The lack of clear delineation of responsibilities in the current Terms of Reference has also raised questions about how the Committee's role interacts with the broader responsibilities of the Council.

Given the Committee's wide-ranging responsibilities and the need for more frequent meetings to cover matters of significance to tangata whenua, a comprehensive review of the Terms of Reference is necessary. This review will ensure that the Committee's purpose, scope, and powers are clearly defined and will be brought back to Council for approval.

4.1 Financial/budget considerations

The Working Group will require minimal additional resources, with support provided by Council staff, Aaron Taikato, General Manager Strategy and Democracy and Mark Scott, Manager Māori Outcomes

Deemed as a voluntary Working Group, any financial implications will be managed within the current Committee budget and it is envisaged the working budget will not exceed \$3000.

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via publication on the website.

6 Attachments / Ngā Tāpiritanga

Attachment 1: Te Kārearea Standing Committee Working Group TERMS OF REFERENCE 2020-2022

Attachment 2: Te Kārearea Standing Committee Working Group TERMS OF REFERENCE 2022-2025

Te Kārearea Strategic Partnership Standing Committee – Terms of Reference

Membership

Chairpersons

Council based meetings: Councillor Phil Halse

Marae based hui: to be determined from mandated hapū members*

Members

Her Worship the Mayor Sheryl Mai

Councillors Gavin Benney, Ken Couper, Greg Innes, Anna Murphy, Carol Peters, Simon Reid and Phil Halse

Eight mandated hapū representatives: Delaraine Armstrong, Jade Kake, Tame TeRangi, Jared Pitman, Mira Norris, Aorangi Kawiti, Deborah Harding and Len Bristowe

Meetings

Bi monthly for formal standing committee meetings, with hui on being held on a marae in accordance with Tikanga*

Quorum

8 comprised of 4 councillor and 4 hapū members

*note, marae based hui will be in accordance with Tikanga and as such are outside of standing orders adopted under the Local Government Act 2002

Preamble

Te Kārearea Strategic Partnership Forum was formed late in 2012 between Te Huinga (as advocates of the hapū of Whangarei) and Whangarei District Council. The desire to 'develop more robust partnership arrangements over time' was signaled in the 2014 revision of the Agreement. This partnership Committee Represents an important step in that process. While the Purpose, Key Responsibilities and Delegations form the basis for the Terms of Reference to determine what the Committee will do, it is important that the respective principles of each of the Partners continue to underpin the relationship, and that the relationship builds on the foundations outlined in the Agreement. The Statement of Principles for each of the Partners, as established in the foundation relationship agreement, is below.

Te Huinga Statement of Principles

He Whakaputanga o Te Rangiratanga o Nu Tirenī (Declaration of Independence – 1835) and Te Tiriti o Waitangi, 1840 provides the foundational doctrines of authority and partnership that are being sought after by the hapū of Whangārei as the relationship develops with the Whangārei District Council.

Te Huinga will work towards achieving the strategic intent.

Strategic Intent

- Vision/Te Pae Tawhiti: 'Ma nga hapū ano nga hapū e korero' - 'Hapū self reliance and prosperity'
- Mission/Te Kaupapa: 'Achieving hapū aspirations through effective and enduring relationships'
- Whangārei - Māori Community Outcomes:
 - a A rohe with a vibrant Māori culture
 - b A Māori community, which is healthy and highly educated

- c A society that protects and cares for all its members
- d A rohe with a flourishing Māori economy
- e A society that appreciates and cares for its natural environment
- Nga tikanga – Values
 - a Whanau – the extended family is the social unit that Māori identify with.
 - b Mana Hapū - Hapū are the cornerstone of the Māori community and identity.
 - c Mana Motuhake – self-determination, self-reliance and self-sustainability.
 - d Whakarite – Invest time and energy in building decision-making capacity and capability.
 - e Te Manawatoopu – Of one heart and mind. We are stronger working together.
 - f Kia maia – Providing leadership through courage.

Whangārei District Council Statement of Principles

In order to improve and enhance relationships with Māori, Council acknowledge a strategic platform is required upon which to continue to build strong relationships. Council is committed to collaboration with Māori organisations within the District.

Council has a contribution to make towards Māori wellbeing, be it environmental, social, cultural/spiritual or economic. Additionally, further collaboration and relationship building processes with Crown agencies and other local territorial authorities will continue as all such organisations make up part of the many services that impact on Māori wellbeing.

Whangārei District Council wishes to engage with Māori hapū and to recognize the Treaty of Waitangi. The Local Government Act 2002 outlines the obligations of local authorities around the Treaty of Waitangi.

Purpose

To enable the primary partners (Council and hapū of Whangārei) to work closely together to achieve the agreed vision 'He Whenua Rangatira - Whangārei, a district of prosperity, wellbeing and empowered communities' and mission 'Ka tūtuki te Kāwanatanga ā-rohe, ka puāwai hoki te kotahitanga me ōna tini kaupapa - Local Government that works through effective partnership and shared decisions to provide practical solutions'. Central to this is continued development of robust partnerships through learning conversations.

The Committee provides a platform for high level/strategic discussions and priority setting between the primary partners, with preference given to *kanohi ki te kanohi* (face-to-face) and preserving tikanga. Areas of focus include, but are not limited to;

- Identifying the cultural, economic, environmental, and social issues/decisions of Council that are significant for Māori¹ in the Whangarei District. (participation)
- Ensuring Council complies with statutory provisions that refer to Te Tiriti o Waitangi (the Treaty of Waitangi), including providing oversight of key processes and controls (assurance)
- To agree mutual strategic priorities (direction)

However, it is acknowledged that areas of focus/priorities may be beyond the direct control of the committee, meaning that in some areas it will be operating in an advisory capacity.

Recognising this, and to ensure clarity, the Working Group for Maori Participation in decision making (which was tasked with developing Terms of Reference) split the responsibilities of

¹ Māori in this context is defined as people that affiliate to a whanau, hapū, Iwi, mana whenua groups

the Committee into those where it provides advice and recommendations, and those where decision making powers would be delegated.

Key responsibilities – advice and recommendations

- 1) Participation
 - a) Develop pathways (and processes) that will achieve lasting and meaningful relationships between Māori and Council.
 - b) Ensure the views of Māori are taken into account.
 - c) Recommend ways to develop Council capacity
 - d) Recommend ways to develop Māori capacity to contribute to decision making processes
 - e) Governance oversight of initiatives, Te Karearea budget and resourcing to build capacity (both Council and Māori) and deliver on the Terms of Reference
 - f) Provide for equitable participation
- 2) Direction
 - a) Identify strategic priorities for the partnership
 - b) Provide advice on topics referred by Council and Māori
 - c) Advice to, and relationships with, other committees of Council
 - d) Recommendations on harbour and waterway matters (within the jurisdiction of WDC)
 - e) Advice and recommendations on 3 Waters and flood protection infrastructure
 - f) Oversight and advice on central government reform initiatives relating to strategic priorities of the partnership and Te Ao Māori including, but not limited to, three waters reform
 - g) Provide advice and recommendations on key strategic policies, plans and projects of Council, including but not limited to growth strategies, the Long Term Plan and the District Plan
 - h) Information sharing / discussions on Treaty Settlement processes and potential co-governance opportunities (where appropriate)
 - i) Identify matters of significance to Māori that may require joint positions/advocacy with external agencies (i.e. co-governance) or recommendations to Council
 - j) Recommendations on Maori Representation (i.e. under the Local Electoral Act)
- 3) Assurance
 - a) Develop a workplan and strategy log to monitor input to, and decision making/progress on, strategic priorities identified by the Committee
 - b) Monitor and advise on council's compliance with its legislative obligations to Māori, including under the Local Government Act 2002 and the Resource Management Act 1991.
 - c) Receive and consider audit reports on Council's compliance with its legislative obligations
 - d) Monitor and ensure that appropriate action is being taken
 - e) Monitor and assess the primary partner relationship against its vision and mission
 - f) Monitoring compliance with statutory provisions that refer to Te Tiriti o Waitangi (the Treaty of Waitangi), including providing oversight of key processes and controls

Key Responsibilities – under Delegated authority

- 1) Establishing Audit Processes for statutory provisions relating to Te Tiriti o Waitangi (the Treaty of Waitangi).
- 2) Establishing Council processes and templates for Mana whakahono ā rohe Agreements and Iwi/Hapu Environmental Management Plans
- 3) Developing a Te Ao Maori framework for decision making
- 4) Establishment of working parties or steering groups
- 5) Nominating hapū representatives to any Council committee, joint committee or working group (as required, noting that nominations to Council Committees or Joint Committees must then be appointed by full Council)
- 6) Developing collaborative relationships on strategic priorities/areas of focus

Te Kārearea Strategic Partnership Standing Committee – Terms of Reference

Membership

Chairperson	Council based meetings: Councillor Deb Harding Marae based hui: to be determined from mandated hapū members*
Deputy Chairperson	Councillor Phil Halse
Members	His Worship the Mayor Vince Cocurullo Councillors Nicholas Connop, Patrick Holmes, Carol Peters, Simon Reid and Phoenix Ruka Eight mandated hapū representatives: Delaraine Armstrong, Len Bristowe, Sandra Hawken, Simon Mitchell, Tame Te Rangi, Sean Walters, Nicki Wakefield and Hohipere Williams
Meetings	Monthly
Quorum	8 comprised of 4 councillor and 4 hapū members

Note: Marae based hui will be held bimonthly and held in accordance with Tikanga and as such are outside of Standing Orders adopted under the Local Government Act 2002.

Purpose

To enable the primary partners (Council and hapū of Whangārei) to work closely together to achieve the agreed vision:

'He Whenua Rangatira - Whangārei, a district of prosperity, wellbeing and empowered communities' and Agreed mission:

'Ka tūtuki te Kāwanatanga ā-rohe, ka puāwai hoki te kotahitanga me ōna tini kaupapa - Local Government that works through effective partnership and shared decisions to provide practical solutions.'

The Committee provides a platform for high level/strategic discussions and priority setting between the primary partners, with preference given to *kanohi ki te kanohi* (face-to-face) and preserving tikanga. Areas of focus include, but are not limited to;

- Identifying the cultural, economic, environmental, and social issues/decisions of Council that are significant for Māori¹ and the community in the Whangārei District. (Participation)
- Ensuring Council complies with statutory provisions that refer to Te Tiriti o Waitangi (the Treaty of Waitangi).
- To agree mutual strategic priorities as and when required (Direction)

Key responsibilities – advice and recommendations

- Participation
 - Develop pathways (and processes) that will achieve lasting and meaningful relationships between Māori and Council.
 - Ensure the views of Māori and the community are equally considered
 - Governance oversight of initiatives - Te Karearea budget and resourcing to build capacity (both Council and Māori) and deliver on the Terms of Reference

¹ Māori in this context is defined as people that affiliate to a whanau, hapū, iwi, mana whenua groups

- Ensure equitable participation, by adequately resourcing hapu to engage, e.g., paid hapu reps for all Council related mahi, hui, etc
- Ensure that Marae hui are open to the public
- Direction
 - Identify strategic priorities to address the Climate Change Adaptation Plan.
 - Provide guidance and advocacy on protection of “nga taonga tuku iho” (special and natural indigenous resources) impacted by the Wildlife Act and Conservation Act.
 - Prepare and provide agenda items in a timely manner on topics referred by Council and Māori
 - Provide recommendations on harbour and waterway matters (within the jurisdiction of WDC)
 - Provide advice and recommendations on Three Waters and flood protection infrastructure
 - Provide oversight and advice on central government reform initiatives relating to strategic priorities of the partnership
 - Provide advice to council to manage the allocation of the “Better Off funding”.
 - Provide advice and recommendations on key strategic policies, plans and projects of Council, including but not limited to growth strategies, the Long-Term Plan and the Annual and District Plan
 - Information sharing / discussions on Treaty Settlement processes and potential partnership opportunities (where appropriate)
 - Identify matters of significance to Māori that may require joint positions/advocacy with external agencies (i.e. partnerships) or recommendations to Council.
- Assurance
 - Develop a workplan and strategy log to monitor input to, and decision making/progress on, strategic priorities identified by the Committee
 - Monitor and advise on council’s compliance with its legislative obligations to Māori, including under the Local Government Act 2002 and the Resource Management Act 1991.
 - Receive and consider audit reports on Council’s compliance with its legislative obligations
 - Monitor and assess the primary partner relationship against its vision and mission
 - Monitoring compliance with statutory provisions that refer to Te Tiriti o Waitangi (the Treaty of Waitangi), including providing oversight of key processes and controls.

Key Responsibilities

- 1) Establishing Audit Processes for statutory provisions relating to Te Tiriti o Waitangi (the Treaty of Waitangi).
- 2) Establishing Council processes and templates for Mana whakahono ā rohe Agreements and Iwi/Hapu Environmental Management Plans
- 3) Developing a Te Ao Maori framework for decision making
- 4) Developing collaborative relationships on strategic priorities/areas of focus.

Delegations

The approval of financial expenditure of less than \$1 million, plus GST.

The Committee does not have:

- I. The power to appoint members (including external members).
- II. The power to establish sub-committees.

- III. The powers Council is expressly prohibited from delegating as outlined in Clause 32(1)(a) - (h) of Schedule 7 of the Local Government Act 2002; being:
- the power to make a rate
 - the power to make a bylaw
 - the power to borrow money, or purchase or dispose of assets, other than in accordance with the long-term plan
 - the power to adopt a long-term plan, annual plan or annual report
 - the power to appoint a chief executive the power to adopt policies required to be adopted and consulted on under the Local Government 2002 in association with the long-term plan or developed for the purpose of the local governance statement
 - the power to adopt a remuneration and employment policy.

RESOLUTION TO EXCLUDE THE PUBLIC**Move/Second**

That the public be excluded from the following parts of proceedings of this meeting.

The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 12 December 2024	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Decision made under delegation during the 2024-2025 Christmas recess period – Legal proceedings		
1.3	Appointment of a Council Trustee on Whangarei Art Trust Board		
1.4	Property Purchase		
1.5	Knowledge Precinct Project Steering Board – Monthly Report		
1.6	CCTO Update -February 2025		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons stated in the open minutes	
1.2	To maintain legal professional privilege.	Section 7(2)(g)
1.3	To protect the privacy of natural persons including that of a deceased person.	Section 7(2)(a)
1.4	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(i)

1.5	To protect information where the making available of the information would be likely unreasonably to prejudice the commercial position of the person who supplied or it the subject of the information.	Section 7(2)(b)(ii)
1.6	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations). To prevent the disclosure or use of official information for improper gain or improper advantage.	Section 7(2)(i) Section 7(2)(j)

Resolution to allow members of the public to remain

If the Council wishes members of the public to remain during discussion of confidential items the following additional recommendation will need to be passed:

Move/Second

"That _____ be permitted to remain at this meeting, after the public has been excluded, because of his/her/their knowledge of Item _____.

This knowledge, which will be of assistance in relation to the matter to be discussed, is relevant to that matter because _____.

Note: Every resolution to exclude the public shall be put at a time when the meeting is open to the public.